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★ SEP 27 2010 ★

BROOKLYN OFFICE

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

DAVID TUCKER, TRESSA TUCKER and
JAMES TUCKER,

Plaintiffs,

ECF CASE No.:

-VS-

10 4403

COMPLAINT AND
JURY DEMAND

GERSHON, J

GO, M.J.

THE CITY OF NEW YORK, POLICE COMMISSIONER
RAYMOND W. KELLY, POLICE OFFICER ANGEL
RODRIGUEZ, Shield No. 07840, POLICE OFFICER GEORGE
LUTI, Shield No. 26504, POLICE OFFICER JAWAD JAVED,
Shield No. 14164, POLICE OFFICER LESLY LAFONTANT,
Shield No. 02397, POLICE OFFICER ADAM SAMET, Shield
No. 07592, POLICE OFFICER BRIAN RAMIREZ, Shield
No. 22014, POLICE OFFICER BLACKSON DOXY, Shield
No. 30963, SERGEANT MARILUZ BENITEZ, Shield No.
02423, Individually, and JOHN/JANE DOES #'s 1-5,
Individually, who were involved in the incident?
resulting in Plaintiff's false arrest and/or injuries,

Defendants.
_____X

COMPLAINT

PRELIMINARY STATEMENT

1. This is an action for money damages brought pursuant to 42 U.S.C. Sections 1983 and 1988, and the Fourth and Fourteenth Amendments of the United States Constitution, and under common law of the State of New York, against the City of New York, Police Officers Angel Rodriguez ("Rodriguez"), George Luti ("Luti"), Jawad Javed ("Javed"), Lesly Lafontant ("Lafontant"), Adam Samet ("Samet"), Brian Ramirez ("Ramirez"), Blackson Doxy ("Doxy"), Sergeant Mariluz Benitez ("Benitez"), Individually, and John/Jane Does #'s 1-5, Individually, all being police officers employed by the New York City Police Department, in their individual

capacities, and against Police Commissioner Raymond W. Kelly. Jurisdiction is based upon 28 U.S.C. Sections 1331 and 1343, and on the pendent jurisdiction of this Court to entertain claims arising under State law.

2. The amount in controversy exceeds \$150,000.00 excluding interest and costs.
3. Venue is laid within the United States District Court for the Eastern District of New York in that Defendant City of New York is located within, and a substantial part of the events giving rise to the claim occurred within the boundary of the Eastern District of New York.
4. It is alleged that on October 6, 2009, the individual police officer defendants, all employed by the New York City Police Department ("NYPD"), acting under color of state law, intentionally and willfully subjected plaintiffs DAVID TUCKER, TRESSA TUCKER and JAMES TUCKER, to *inter alia*, false arrest, false imprisonment, excessive force and malicious prosecution upon making an unreasonable seizure of the person of plaintiffs.¹ These actions violated plaintiffs' rights under the Fourth and Fourteenth Amendments to the United States Constitution. It is further alleged that these violations and torts were committed as a result of policies and customs of the NYPD.
5. Plaintiffs seek monetary damages (special, compensatory and punitive) against the defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper.

PARTIES

6. David Tucker, Tressa Tucker and James Tucker were at all material times, of full age, residents of the State of New York, and United States citizens. James Tucker is the father of David and Tressa.
7. At all times relevant to this Complaint, all defendants named herein were duly appointed and acting officers and entities of the NYPD, acting under color of law, to

¹ David Tucker is the only plaintiff who maintains a Malicious Prosecution cause of action. The other plaintiffs, while detained unlawfully by the police, were never formally arrested or charged with a crime.

wit: under color of statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

8. Police Officers Rodriguez, Luti, Javed, Lafontant, Samet, Ramirez and Doxy, and Sergeant Benitez, all listed in the above caption, together with John/Jane Does #'s 1-5, at all times relevant were New York City Police Officers or sergeants of the New York City Police Department. They are each sued in their individual and official capacities as a result either of their actions at the scene of the incident giving rise to the claims herein, including the unlawful arrest of David Tucker, or, in their capacity as policymakers with respect to training, supervision and discipline of police officers under their command.
9. The City of New York ("The City") is a municipal corporation organized under the laws of the State of New York.
10. New York City Police Commissioner Raymond W. Kelly ("The Commissioner") was at all times relevant the Commissioner of the New York City Police Department, and, as such, was a policymaker with respect to training, supervision and discipline of NYPD officers, including the individual defendants herein. The Commissioner is being sued both in his individual and official capacities.
11. The NYPD is a municipal corporation and the public employer of the said officers.

NOTICE OF CLAIM

12. Within 90 days of the events in question, as well as within 90 days of the termination in plaintiff David Tucker's favor of the criminal proceedings arising out of the events, plaintiff filed a written Notice of Claim with the New York City Office of the Comptroller. This matter has since been dismissed and sealed.

FACTS

13. On or about October 6, 2009, at approximately 8:30 P.M, Tressa Tucker and James Tucker were safely and securely inside their residence, a private house, to wit: 523 Thatford Avenue, Brooklyn, New York.

14. David Tucker, also a resident of said private house, was returning home after visiting a neighbor for a short time period. He was approaching the entrance of his home when he observed a swarm of uniformed police officers open the gate of the Tucker home, and alight up the front steps immediately outside the entrance of said Tucker home. David Tucker also observed other police officers running in the direction of the Tucker home.
15. The police officers verbally demanded entry into the Tucker home. The plaintiffs all refused the police officers' attempts to enter their home.
16. A verbal dispute involving most or all of the named defendant police officers thereafter ensued just outside of the Tucker home.
17. Without provocation from David Tucker, one of the defendant police officers grabbed David Tucker by the front of David Tucker's shirt. Shortly thereafter Officer Luti pushed David Tucker from the back propelling David Tucker forward and causing him to lose his balance.
18. Up until then, James Tucker had at all times refused the police's repeated requests to consent to a warrantless entry and search of the Tucker home. Only after observing the police forcefully grab and push his son, David, and thus becoming concerned for the safety and well-being of David, did he elect to allow Sergeant Benitez to conduct a search of the home. Under such circumstances, the 'consent' given was not voluntary. Rather, it was a product of the police aggressiveness and physical actions taken toward his son.
19. Sergeant Benitez then entered the Tucker home accompanied by both David Tucker and James Tucker. Immediately prior to entering the home, Benitez had instructed that the other officers and Tressa Tucker to remain outside. Notwithstanding these instructions, Officer Luti entered the hallway vestibule area of the home, grabbed David Tucker by Mr. Tucker's jacket, placed him in a headlock, and a second officer, upon information and belief, Officer Rodriguez, repeatedly punched David Tucker while he remained in this police headlock.
20. The individually named defendant police officers, including Police Officers Luti and Rodriguez, proceeded to pull David Tucker from the hallway/vestibule area of his home through the front door immediately outside his home. The individually named

defendant police officers descended the concrete steps in front of the Tucker home. Several individually named officers including Luti and Rodriguez grabbed David Tucker's limbs. Several other individually named officers actively aided these officers in pulling David Tucker down the steps, or, alternatively, did not intervene and otherwise permitted this assaultive conduct to occur. Certain of the individually named defendant police officers either pulled David Tucker by his feet with his face down thus causing David Tucker's body and face to strike and scrape the concrete steps with each and every movement, or they abetted and assisted those officers who pulled him.

21. James Tucker then was drawn to what was happening to his son, and demanded that the police officers involved cease their conduct. James Tucker was then threatened with arrest. The individually-named police officers forcefully handcuffed David Tucker. One police officer applied his knee to David Tucker's neck and head. David Tucker's arm was pinned by the police officers during the attempt to handcuff him. During this time, Tressa Tucker, 5'1, 95 lbs., implored the officers to stop assaulting her brother. Officer Javed, while gripping her body forcefully stated to her to "Shut the ----up or I'll put restraints on you."
22. As a result of the police officer's cumulative actions, David Tucker was bleeding from his face, left shoulder, left elbow and left knee.
23. David Tucker was transported to the 73rd Precinct in Brooklyn and then onto Brookdale Hospital ("Brookdale") where he was treated. David Tucker remained at Brookdale for approximately 24 hours before being transported to Criminal Court for arraignment. He was formally charged with several Misdemeanors including Obstructing Governmental Administration in the Second Degree (P.L. Section 195.05), Resisting Arrest (P.L. Section 205.30), Attempted Assault in the Third Degree (P.L. Section 110/120.00) and Harassment in the Second Degree (P.L. Section 240.26). Including the time spent at Brookdale Hospital, David Tucker was detained in police custody for a total period of approximately 36 hours before being released by the court.

24. At no time during the events described above were any of the plaintiffs intoxicated, incapacitated, a threat to the safety of themselves or others, or disorderly. None had committed any criminal offenses.
25. The defendant police officers had no warrant for the arrest of the plaintiff David Tucker; no probable cause for the arrest of the plaintiff David Tucker; and no legal cause or excuse to seize the person of the plaintiff David Tucker. Nor did the defendants have either a warrant or voluntary consent allowing any of them to enter the Tucker residence and detain and confine plaintiffs Tressa Tucker and James Tucker inside and outside their home during the length of the incident.
26. The plaintiff, David Tucker, was arbitrarily and falsely accused with the above-cited criminal charges.
27. On or about June 22, 2010, all of the above criminal charges against plaintiff David Tucker were dismissed and sealed.
28. At all times during the events described above, the defendant police officers were engaged in a joint venture. The individual officers assisted each other in performing the various actions described and lent their physical presence and support and the authority of their office to each other during the said events.
29. As a direct and proximate result of the said acts of the defendant Officers, the plaintiffs David Tucker, Tressa Tucker and James Tucker suffered the following injuries and damages:
 - a. Violation of their constitutional rights under the Fourth and Fourteenth amendments to the United States Constitution to be free from an unreasonable search and seizure of their respective person;
 - b. Loss of their physical liberty;
 - c. Physical pain and suffering and emotional trauma and suffering, requiring, in David Tucker's instance, the expenditure of money and treatment, including, but not limited to, swelling, abrasions, wounds, scarring and disfigurement to his head, face and left side of his body.
30. The actions of the defendant Police Officers violated the long-established and well-settled federal constitutional rights of David Tucker, Tressa Tucker and James

Tucker, to wit: the freedom from the unreasonable seizure of David Tucker's, Tressa Tucker's and James Tucker's person.

42 U.S.C. Section 1983 Against Individual Defendant NYPD Officers.

31. Paragraphs 1 through 30 are incorporated herein by reference as though full set forth herein at length.
32. Plaintiffs David Tucker, Tressa Tucker and James Tucker claim damages for the injuries set forth above under 42 U.S.C. Section 1983 against defendants City of New York, NYPD, New York City Police Officers Rodriguez, Luti, Javed, Lafontant, Samet, Ramirez, Doxy and Sgt. Benitez, and John/Jane Does 1-5 all engaged in the actions and conduct alleged herein in their official capacities as NYPD police officers and under color and authority of federal and state law, regulation, ordinance, custom and usage, for violations of David Tucker's, Tressa Tucker's and James Tucker's constitutional rights under color of law. Each officer acted within the course and scope of their employment with the NYPD of defendant City of New York.
33. That such actions served to deprive David Tucker, Tressa Tucker and James Tucker of the rights and privileges of the United States Constitution, the Fourteenth Amendment of the U.S. Constitution and Section 1983 of 42 U.S.C. In particular, they were deprived of their right to due process of law, of their right to happiness and to their liberty.
34. Defendants New York City Police Officer individually named not only engaged in intentional conduct, but they did so either with the intent to violate the plaintiffs' civil rights, or with reckless disregard for whether the defendant's conduct would violate such rights.
35. Plaintiffs, David Tucker, Tressa Tucker and James Tucker have each been damaged as a result of defendants' wrongful act in the amount of Five Million Dollars.

COUNT II

False Arrest and Illegal Imprisonment Against Individual Defendant NYPD Officers.

36. Paragraphs 1 through 35 are incorporated herein by reference as though fully set forth hereinafter at length.
37. Defendant NYPD Police officers named and un named herein illegally arrested and illegally imprisoned plaintiffs David Tucker, Tressa Tucker and James Tucker. In doing so, these officers not only engaged in intentional conduct, but they did so either with the intent to violate the plaintiffs' federal rights, or with a reckless disregard for whether defendant's conduct would violate such rights.
38. As a result of this false arrest and illegal imprisonment, the plaintiffs, David Tucker, Tressa Tucker and James Tucker, suffered the damages as aforesaid in the amount of five Million Dollars.

COUNT III

Assault and Battery Against Defendants, et al.

39. Paragraphs 1 through 38 are incorporated by reference as though full set forth hereinafter at length.
40. At the above time and place, defendant Police Officers Rodriguez, Luti, Javed, Lafontant, Samet, Ramirez, Doxy, Sgt. Benitez and John/Jane Does and City of New York, through the actions of its agents, employees and police officers at the scene committed assault and battery all within the course and scope of their employment by subjecting plaintiff David Tucker to harmful and offensive bodily contact with the intent to do so.
41. At the above time and place, plaintiff David Tucker was consciously aware of this contact, did not consent to it, and was otherwise harmed by it.
42. Such harmful and offensive contact was unlawful, excessive, and was without legal justification or other privilege.

43. Defendants have deprived plaintiffs David Tucker of his civil, constitutional and statutory rights and have conspired to deprive David Tucker of such rights and are liable to plaintiff David Tucker under 42 USC Section 1983, New York State Common Law and The New York State Constitution.
44. By reason of the foregoing, plaintiff David Tucker sustained serious physical injuries and conscious pain and suffering herein which led to extensive and long-term health and medical care, and claims damages in the sum of Five Million Dollars.

COUNT IV

42 U.S.C. Section 1983 Against Defendants

45. Paragraphs 1 through 44 are incorporated herein by reference as though full set forth hereinafter at length.
46. Prior to October 6, 2009, the NYPD developed and maintained policies or customs exhibiting deliberate indifference to the constitutional rights of citizens, which caused the violation of plaintiffs' rights.
47. It was the policy and/or custom of the NYPD to inadequately supervise, train, discipline, sanction or otherwise directs its police officers, including the defendant officers named in this case, thereby failing to adequately discourage further constitutional violations on the part of its police officers. The NYPD did not require appropriate in-service training of officers on the subject of police misconduct, nor did it take measures to prevent such constitutional abuses such as described herein.
48. As a result of the NYPD's developed policies and customs, police officers of the NYPD, including the defendant officers named in this case, believed that their actions would not be properly monitored by supervisory officers, and that conduct would not be investigated or sanctioned, but would rather be tolerated.
49. The above-mentioned policies, practices and customs demonstrated a deliberate indifference on the part of policymakers of the NYPD. Said policies, practices and customs have served to encourage and sanction the police officers' unlawful conduct described above, such conduct having adversely impacted upon the constitutional

rights of citizens, and were. the cause of the violations of the plaintiffs' rights alleged herein on October 6, 2009.

50. Plaintiffs David Tucker, Tressa Tucker and James Tucker have all been damaged as a result of defendants' wrongful acts in the amount of Five Million Dollars.

COUNT V

Malicious Prosecution against Defendants

51. Paragraphs 1 through 50 are incorporated by reference as though fully set forth hereinafter at length.

52. Defendants caused false criminal accusatory instruments to be filed against plaintiff David Tucker and testified falsely against David Tucker.

53. The criminal proceedings were dismissed and sealed, thus terminated favorably to David Tucker.

54. Defendants have deprived plaintiff David Tucker of his civil, constitutional and statutory rights, and have conspired to deprive him of such rights and are liable to plaintiff under 42 USC Section 1983, New York State common law and the New York State Constitution.

55. As a result of the malicious prosecution implemented by the defendants, plaintiff David Tucker was damaged in the sum of Five Million Dollars.

WHEREFORE, the plaintiffs David Tucker, Tressa Tucker and James Tucker each demand judgment against the defendants, jointly and severally, as follows:

- a. In favor of plaintiffs in the amount of five Million Dollars for each of plaintiffs' respective Causes of Action;
- b. Awarding costs and disbursements of this action to the plaintiffs;
- c. Awarding reasonable attorney fees of this action to the plaintiffs;
- d. Awarding plaintiffs punitive damages in the amount of Five Million Dollars for each of plaintiffs Causes of Action; and
- e. Awarding such other and further relief as this Court may deem appropriate, just and proper.

The plaintiffs hereby demand a jury trial.

Dated; Brooklyn, New York
September 27, 2010

THE PLAINTIFFS,

BY:

A handwritten signature in black ink, appearing to read "Spencer A. Leeds", is written over a horizontal dashed line.

SPENCER A. LEEDS, ESQ.

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